

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alexander Opoku-Agyemang	Team: Team # 5	CCRB Case #: 201106874	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 05/24/2011 8:30 PM	Location of Incident: Jerome Avenue and Clinton Place; 46th Precinct stationhouse		18 Mo. SOL 11/24/2012	Precinct: 46	
Date/Time CV Reported Fri, 05/27/2011 10:51 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Fri, 05/27/2011 10:51 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Matthew Lombardo	05261	949214	PBBX
2. SGT Albert Rodriguez	02441	933532	PBBX
3. POM Eugene Donnelly	11586	948906	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Darryl Jenkins	00741	949140	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Albert Rodriguez	Abuse: At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Substantiated
B . SGT Albert Rodriguez	Abuse: At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the frisk of § 87(2)(b)	B . Substantiated
C . POM Eugene Donnelly	Abuse: At the 46th Precinct stationhouse, PO Eugene Donnelly strip-searched § 87(2)(b)	C . Unsubstantiated
D . POM Matthew Lombardo	Abuse: At the 46th Precinct stationhouse, PO Matthew Lombardo issued a summons to § 87(2)(b)	D . Substantiated

Case Summary

On May 27, 2011, § 87(2)(b) filed this complaint via the CCRB online website (Encl. 4A-F).

At approximately 8:30 p.m. on May 24, 2011, § 87(2)(b)'s vehicle was stopped at the intersection of Jerome Avenue and Clinton Place in the Bronx by Sgt. Albert Rodriguez, PO Matthew Lombardo, and PO Eugene Donnelly. The following allegations resulted:

- **Allegation A – Abuse of Authority – At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the search of the car in which § 87(2)(b) and § 87(2)(b) were occupants.**

§ 87(2)(g)

It is therefore recommended that Allegation A be **Substantiated**.

- **Allegation B – Abuse of Authority – At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the frisk of § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation B be **Substantiated**.

- **Allegation C – Abuse of Authority – At the 46th Precinct stationhouse, PO Eugene Donnelly strip searched § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation C be **Unsubstantiated**.

- **Allegation D – Abuse of Authority – At the 46th Precinct stationhouse, PO Matthew Lombardo issued a summons to § 87(2)(b)**

§ 87(2)(g)

It is therefore recommended that Allegation D be **Substantiated**.

Results of Investigation

Civilian Statement(s)

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes. § 87(2)(b)

CCRB Testimony

On June 9, 2011, § 87(2)(b) was interviewed at the CCRB (Encl. 6B-I). § 87(2)(g)

At approximately 8:00 p.m. on May 24, 2011, § 87(2)(b) received a call from a friend, § 87(2)(b) who informed him that he had received a pair of tickets to that night's New York Yankees –Toronto Blue Jays baseball game from some friends who had decided not to go. § 87(2)(b) knew that the game was already in progress but decided that it would still be worthwhile to attend. § 87(2)(b)

§ 87(2)(b) drove his blue 2003 Nissan Sentra to § 87(2)(b) house and picked him up and they set off for Yankee Stadium, located at West 161st Street and Jerome Avenue in the Bronx.

At approximately 8:30 p.m., as they were driving southbound on Jerome Avenue, § 87(2)(b) stopped at a red light at the intersection of Jerome Avenue and Clinton Place. While stopped at the light, § 87(2)(b) saw a marked police car several car lengths behind him, driving in his direction with its sirens and turret lights on. The marked car pulled up beside § 87(2)(b)'s vehicle. There were no other cars passing and all of the stores near the intersection were closed. § 87(2)(b) observed two uniformed officers inside the marked car. § 87(2)(b) described the driver as an approximately 5'11" to 6'0" tall, 170 pound, white male in his early-20s with blond hair, green eyes, and a muscular slim build. The investigation identified this officer as PO Eugene Donnelly. § 87(2)(b) described the passenger, identified via the investigation Sgt. Albert Rodriguez, as an approximately 5'7" to 5'8" tall, 170 pound, Hispanic male in his late-20s to early-30s with black hair, brown eyes, and a slim build. PO Donnelly asked § 87(2)(b) and § 87(2)(b) "Gentlemen, what's going on?" § 87(2)(b) unsure what had prompted the officer's question, replied, "Nothing, officer. How may I help you?" PO Donnelly asked § 87(2)(b) whether he was aware that the license plate lights at the rear of his vehicle were not working. § 87(2)(b) replied that he had not known. PO Donnelly asked § 87(2)(b) where they were headed and § 87(2)(b) replied that they were headed to the Yankees game.

At this point PO Donnelly asked § 87(2)(b) to pull his car over to the side of the road and § 87(2)(b) did so. PO Donnelly and Sgt. Rodriguez exited the marked car and walked to § 87(2)(b)'s parked vehicle. PO Donnelly approached § 87(2)(b) at the driver's side while Sgt. Rodriguez approached § 87(2)(b) at the passenger side. PO Donnelly asked to see the tickets to the game. § 87(2)(b) removed the tickets (Encl. 6H) from his pocket and handed them to Sgt. Rodriguez, who studied them and then showed them to PO Donnelly. PO Donnelly then asked for § 87(2)(b)'s license, which § 87(2)(b) removed from his wallet, which was in his back pants pocket, and provided to him. After examining § 87(2)(b)'s license, PO Donnelly asked both he and § 87(2)(b) to exit the vehicle and walk to the rear of the car. As they were walking to the rear of the car, a second marked car arrived at the scene with two uniformed officers who exited and approached § 87(2)(b)'s vehicle as well. § 87(2)(b) described the first officer, identified via the investigation as PO Matthew Lombardo, as an approximately 6'1" tall white male in his mid-20s with brownish-blond hair and a muscular slim build and the second officer, who was identified via the investigation as PO Darryl Jenkins, as an approximately 6'1" tall black male in his 30s with a large muscular build.

While standing at the rear of the car, § 87(2)(b) turned around and saw PO Donnelly putting his hands into the pocket on the inside of the front driver's door and removing objects from it and then placing them back. PO Lombardo stood behind § 87(2)(b) grabbed him by the shoulder, and turned him away from the car. § 87(2)(b) turned his head and saw that PO Donnelly was now inside the car, searching underneath the front driver and passenger seats, the glove compartment, and the middle console. While PO Donnelly searched the car, PO Lombardo patted down § 87(2)(b)'s waistline and pockets. At the same time, Sgt. Rodriguez patted down § 87(2)(b)'s pockets and waistband and then placed his hands into the side pockets of § 87(2)(b)'s pants. § 87(2)(b) repeatedly asked why PO Donnelly was searching the car and whether or not he had a warrant to search the car. PO Donnelly told § 87(2)(b) to "shut up" but § 87(2)(b) persisted in asking why he was searching his car. At some point PO Donnelly exited the car and told PO Lombardo to "cuff him up," in regards to § 87(2)(b). PO Lombardo proceeded to handcuff § 87(2)(b). PO Donnelly then unlocked the trunk of § 87(2)(b)'s vehicle with a switch at the front of the car. He came to the back of the vehicle, opened the trunk fully, and looked into it. The vehicle search took approximately ten minutes.

§ 87(2)(b) was placed into PO Donnelly's marked car and § 87(2)(b) was allowed to leave. PO Donnelly drove § 87(2)(b) to the 46th Precinct stationhouse while Sgt. Rodriguez and PO Lombardo drove § 87(2)(b)'s vehicle. In the patrol car PO Donnelly told § 87(2)(b) that he was arresting him to "humble" him. They were alone inside the car at this time. When they arrived at the stationhouse, PO Donnelly walked § 87(2)(b) to the main desk and then walked him into a small room at the rear of the stationhouse. PO Donnelly closed the door to the room and then asked § 87(2)(b) to remove his shoes, socks, pants and underwear. PO Donnelly then asked him to bend over and cough, which § 87(2)(b) did. After § 87(2)(b) finished putting his pants back on, he was placed in the cells. No contraband was recovered during the strip search.

Approximately 15 minutes after he was brought to the stationhouse, PO Donnelly released § 87(2)(b). § 87(2)(b) was handed two summonses, both issued by PO Lombardo: a criminal summons for "refusing a lawful order" and a VTL summons for a broken license plate light. After the incident, § 87(2)(b) checked his license plate lights and realized that they were not working. He has since had them repaired (Encl. 9B) and does not contest the traffic summons.

Photo Array

On December 28, 2011, a single shot photo viewing was conducted with § 87(2)(b) at the CCRB (Encl. 6J-P). A series of sequentially numbered photographs of the following officers were shown, one by one, to § 87(2)(b): PO Jarmarie Flowers, PO Edward Lawyerr, PO Matthew Lombardo, PO Darryl Jenkins, PO Eugene Donnelly, and PO Darren Earl. All six officers were assigned to Patrol Borough Bronx.

After viewing the photographs, § 87(2)(b) identified PO Lombardo as the officer who held him at the back of his car and patted him down. He also believes PO Lombardo drove his § 87(2)(b)'s vehicle back to the stationhouse. § 87(2)(b) identified PO Jenkins as an officer who was present at the vehicle stop but who had no interaction with either him or § 87(2)(b). § 87(2)(b) identified PO Donnelly as the officer who searched his car, transported him to the stationhouse, and told him that he was arresting him in order to "humble" him.

Victim: § 87(2)(b)

- § 87(2)(b) is a Hispanic male. § 87(2)(b)

Telephone Statement

The CCRB contacted § 87(2)(b) on December 14, 2011, and he provided the following telephone statement (Encl. 6R). § 87(2)(b) stated that on May 24, 2011, he and § 87(2)(b) were going home after seeing a Yankees game when their vehicle was pulled over by four officers in plainclothes. § 87(2)(b) could not describe any of the officers. § 87(2)(b) stated that he overheard an officer say that a headlight was out, but he never saw this. An officer approached the driver's side and spoke to § 87(2)(b). § 87(2)(b) did not overhear their conversation. Another officer stood by § 87(2)(b) side. The officer by § 87(2)(b) instructed him to exit, which he did. Once § 87(2)(b) exited the vehicle, he was immediately handcuffed. Another officer entered the vehicle and began to look around. § 87(2)(b) did not see where he searched, because he was instructed to exit the vehicle at this time. § 87(2)(b) complied and stood by the rear passenger's side. § 87(2)(b) saw the officer with § 87(2)(b) frisk and search his pants pockets. § 87(2)(b) asked the officers if they were going to search him too. An officer told him to just take it easy. None of the officers ever frisked or searched § 87(2)(b). The officers then escorted § 87(2)(b) to the police vehicle and placed him inside. One of the officers drove § 87(2)(b)'s vehicle and § 87(2)(b) was told to go home.

NYPD Statements:

Subject Officer: PO MATTHEW LOMBARDO

- PO Lombardo, § 87(2)(b) at the time of the incident, is a § 87(2)(b) white male with brown hair and brown eyes.
- PO Lombardo worked from 4:00 p.m. on May 24, 2011, to 12:35 a.m. on May 25, 2011. He was in uniform and assigned to the 46th Precinct Impact Zone in marked patrol car # 1717 with PO Eugene Donnelly and Sgt. Alberto Rodriguez.

Memo Book

PO Lombardo's memo book entries (Encl. 7AC) note that he was picked up by Sgt. Rodriguez in RMP # 1717 at 8:00 p.m. At 8:50 p.m. they stopped a car at Clinton Place and Jerome Avenue. At 8:52 p.m. he issued two summonses. There are no notations regarding a strip search.

Summons # § 87(2)(b)

The criminal summons issued to § 87(2)(b) by PO Lombardo (Encl. 7D) indicates that it was issued at 8:50 p.m. on May 24, 2011, at the intersection of Clinton Place and Jerome Avenue, charging § 87(2)(b) with Penal Law section 240.20 (disorderly conduct) subsection 6 for refusing a lawful order.

Summons # § 87(2)(b)

The traffic summons issued to § 87(2)(b) by PO Lombardo (Encl. 7E) cites him for driving with a defective rear plate light.

CCRB Testimony

On August 12, 2011, PO Lombardo was interviewed at the CCRB (Encl. 7F-H).

At approximately 8:50 p.m. on May 24, 2011, PO Lombardo, PO Donnelly, and Sgt. Rodriguez were traveling along Jerome Avenue in the Bronx when PO Lombardo observed a vehicle in front of them with what appeared to be a defective rear license plate light. The officers pulled the vehicle over at the intersection with Clinton Place and approached it. PO Lombardo and Sgt. Rodriguez approached the driver's side while PO Donnelly approached the passenger's side. PO Lombardo observed two individuals, identified as § 87(2)(b) and § 87(2)(b) in the car.

Once he reached the vehicle, PO Lombardo asked § 87(2)(b) for his driver's license. § 87(2)(b) immediately reached his hand into the pocket on the inside of front driver's side door. PO Lombardo found this motion to be "furtive" because, from his position, he could not see into the door pocket and § 87(2)(b) appeared to have been removing something from the door pocket. § 87(2)(b)'s hand had been in the door pocket for "a few seconds." § 87(2)(b) did not reach his hand into any other part of the car besides the door pocket. PO Lombardo indicated that he believed that his partners also saw § 87(2)(b) reach towards the door but were also not in a position to see what § 87(2)(b) was doing in the door pocket. To be safe, PO Lombardo asked § 87(2)(b) to exit the car. § 87(2)(b) opened his door and stepped out of the car immediately. PO Lombardo escorted § 87(2)(b) to the rear of his car, behind the trunk and told him to remain there. PO Donnelly walked to the open driver's door and began searching the pocket on the inside of the door. PO Donnelly remained outside the vehicle while searching the door pocket since the door was open. PO Lombardo never observed PO Donnelly reach his hands into or enter the vehicle itself. He never observed PO Donnelly search any part of the vehicle beside the driver's door pocket. As PO Donnelly began to search, § 87(2)(b) screamed at him, "You cannot search my vehicle," and began walking towards PO Donnelly at the front driver's door. § 87(2)(b)

reached as far as the rear driver's side door before PO Lombardo grabbed hold of him. § 87(2)(b) got within approximately one foot of PO Donnelly but never made physical contact with him. PO Lombardo brought § 87(2)(b) back to the rear of the car. PO Lombardo described § 87(2)(b)'s motion towards PO Donnelly as "violent." He attributed the "violent" nature to the pace at which § 87(2)(b) walked toward PO Donnelly and how loudly he told PO Donnelly not to search the car. PO Lombardo himself never searched the door pocket or any other part of § 87(2)(b)'s vehicle.

After he brought § 87(2)(b) back to the rear of his vehicle, PO Lombardo proceeded to frisk his pockets and his waistband for weapons. He did not frisk any other parts of his body or search him. PO Lombardo stated that § 87(2)(b)'s "furtive" movements while he was in the car, and his approach of PO Donnelly led him to believe that § 87(2)(b) may have had a weapon. Once § 87(2)(b) was brought back to the rear of the car he made no further attempts to move towards PO Donnelly, though he repeatedly turned his head to watch him and state loudly that the officers were not allowed to search his vehicle. § 87(2)(b)'s loud protestations appeared to draw the attention of passersby who were walking past them on the sidewalk. The passersby would stop for "a second" and continue on their way. A crowd did not form and none of the passersby verbally interjected or physically interfered with the car stop.

PO Lombardo arrested § 87(2)(b) for disorderly conduct for refusing a lawful order, in walking towards PO Donnelly after PO Lombardo had told him to remain at the back of the car and in having drawn the attention of the passersby by loudly telling the officers that they were not allowed to search his car. No other police vehicles or officers, besides PO Lombardo, PO Donnelly, and Sgt. Rodriguez, responded to this incident. After PO Lombardo placed § 87(2)(b) into the marked car, § 87(2)(b) informed him that he had been on his way to a Yankees game. PO Lombardo and Sgt. Rodriguez transported § 87(2)(b) to the 46th Precinct stationhouse while PO Donnelly drove § 87(2)(b)'s vehicle.

At the stationhouse, PO Lombardo took § 87(2)(b) in front of the main desk and then took him to the cells where he had him remove his shoe laces and his belt. PO Lombardo then frisked § 87(2)(b). PO Lombardo did not conduct a strip search of § 87(2)(b) or ask him to remove any articles of clothing. He is not aware of any other officer having conducted a strip search of § 87(2)(b) and did not observe any officers beside himself interacting with § 87(2)(b). PO Lombardo wrote two tickets, for the broken license plate light and for refusing a lawful order, for § 87(2)(b) and released him.

Subject Officer: SGT ALBERT RODRIGUEZ

- Sgt. Rodriguez, § 87(2)(b) at the time of the incident, is a § 87(2)(b) Hispanic male with black hair and brown eyes.
- Sgt. Rodriguez worked from 3:50 p.m. on May 24, 2011, to 12:44 a.m. on May 25, 2011. He was in uniform and assigned to the 46th Precinct Impact Zone in marked patrol car # 1717 with PO Donnelly and PO Lombardo.

Memo Book

Sgt. Rodriguez's memo book entries (Encl. 7I-K) note that at 8:50 p.m. PO Lombardo arrested one individual. There are no notations regarding a strip search.

CCRB Testimony

On September 6, 2011, Sgt. Rodriguez was interviewed at the CCRB (Encl. 7L-M). Sgt. Rodriguez testified that he had no recollection of this incident. He reviewed the 46th Precinct command log entry, which indicates that he was the supervisor who verified § 87(2)(b)'s arrest, but he did not recall the circumstances regarding the entry. Sgt. Rodriguez stated that had a strip search been performed on § 87(2)(b)

§ 87(2)(b) he would have likely recalled the incident and there would have been notations in the command log and his memo book indicating that he had authorized one.

Subject Officer: PO EUGENE DONNELLY

- PO Donnelly, § 87(2)(b) at the time of the incident, is a § 87(2)(b) white male with blond hair and blue eyes.
- PO Donnelly worked from 4:00 p.m. on May 24, 2011, to 12:35 a.m. on May 25, 2011. He was in uniform and assigned to the 46th Precinct Impact Zone in marked patrol car # 1717 with PO Lombardo and Sgt. Alberto Rodriguez.

Memo Book

PO Donnelly's memo book entries (Encl. 7N-O) note that at 8:50 p.m. he and PO Lombardo arrested an individual at West 182nd Street for disorderly conduct. There are no notations regarding a strip search.

CCRB Testimony

On October 28, 2011, PO Donnelly was interviewed at the CCRB (Encl. 7P-Q). PO Donnelly testified that he had no recollection of this incident. PO Donnelly viewed an entry in the 46th Precinct command log indicating that he was § 87(2)(b)'s arresting officer (Encl. 8A). PO Donnelly acknowledged that he was the officer indicated in the command log entry but he had no recollection of the circumstances surrounding the command log entry.

Witness Officer: PO DARRYL JENKINS

- PO Jenkins, § 87(2)(b) at the time of the incident, is a § 87(2)(b) black male with brown hair and brown eyes.
- PO Jenkins worked from 4:00 p.m. on May 24, 2011, to 12:35 a.m. on May 25, 2011. He was in uniform and assigned to the 46th Precinct Impact Foot-post 35.

Memo Book

PO Jenkins's memo book entries from May 24, 2011 (Encl. 7R-S) note that at 8:00 p.m. he was on patrol. At 9:00 he went out of service for his meal. He resumed patrol at 10:00 p.m. At 10:35 p.m. he conducted a vertical patrol in 1 West 182nd Street. He left at 10:40 p.m.

CCRB Testimony

On January 12, 2012, PO Jenkins was interviewed at the CCRB (Encl. 7T-U). PO Jenkins testified that he had no independent recollection of this incident. PO Jenkins stated that he knew Sgt. Rodriguez, PO Donnelly, and PO Lombardo and worked with them occasionally but had no recollection of having worked with any of them on May 24, 2011. He was familiar with the intersection of Jerome Avenue and Clinton Place but had no recollection of having been involved in a vehicle stop or arrest or having witnessed a vehicle stop or arrest in the vicinity of that location on May 24, 2011.

NYPD Document(s)

46th Precinct Command Log

- The tour 3 command log for the 46th Precinct on May 24, 2011 (Encl. 8A), indicates that § 87(2)(b) was brought to the stationhouse at 9:05 p.m. and was released with summonses at 9:20 p.m. PO Donnelly is listed as the arresting officer and Sgt. Rodriguez is listed as the supervisor verifying the arrest. There is no notation indicating that a strip search occurred.

46th Precinct UF250 Stop and Frisk log

- The Stop and Frisk Report Log from the 46th Precinct for May 24, 2011 (Encl. 8B-E), does not list a

UF250 for § 87(2)(b) or § 87(2)(b) or any UF250s prepared by PO Lombardo, PO Donnelly, or Sgt. Rodriguez.

Summons/Arrest for Incident and Disposition

- Department of Motor Vehicle records reveal that on § 87(2)(b), Summons # § 87(2)(b) for the broken license plate light, was dismissed as § 87(2)(b) corrected the infraction within a day of the summons (Encl. 9A-B).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)], § 87(2)(a) 160.50
[REDACTED].

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York with regards to this incident as of September 26, 2011, more than 90 days after the incident (Encl. 11D).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint involving either § 87(2)(b) or § 87(2)(b) (Encl. 2E-F).

Subject Officer(s) CCRB History

- Sgt. Albert Rodriguez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (Encl. 2A).
- PO Eugene Donnelly has been a member of the service for one year and there are no substantiated CCRB allegations against him (Encl. 2B-C).
- PO Matthew Lombardo has been a member of the service for one year and there are no substantiated CCRB allegations against him (Encl. 2D).

Conclusion

Identification of Subject Officer(s)

- § 87(2)(b) stated that there were four officers present for this incident, two white males, a Hispanic male, and a black male. § 87(2)(b) identified PO Donnelly and PO Lombardo in a photo viewing as the two white officers and identified PO Jenkins as the black officer. He alleged that PO Donnelly was the officer who searched his vehicle and transported him to the stationhouse and alleged that PO Lombardo was the officer who frisked him at the scene of his vehicle stop. PO Lombardo acknowledged stopping § 87(2)(b)'s vehicle with Sgt. Rodriguez and PO Donnelly. PO Lombardo acknowledged frisking § 87(2)(b) and acknowledged that PO Donnelly was the officer who searched § 87(2)(b)'s vehicle. Sgt. Rodriguez and PO Donnelly had no recollections of this incident but their own memo book entries, along with PO Lombardo's memo book entries, statement, and the command log, placed them at the location at the time of the incident. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

Allegations not Pleaded

- § 87(2)(g) [REDACTED]
- § 87(2)(b) [REDACTED] alleged that an officer frisked and searched § 87(2)(b) [REDACTED] but § 87(2)(b) [REDACTED] stated in his telephone statement that he was neither searched nor frisked during this incident.
§ 87(2)(g) [REDACTED]

Investigative Findings and Recommendations

Allegation A – Abuse of Authority – At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the search of the car in which § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were occupants.

It is undisputed that the driver's side door pocket of § 87(2)(b) [REDACTED]'s vehicle was searched during this incident. PO Lombardo testified that PO Donnelly searched the door pocket because § 87(2)(b) [REDACTED] reached into the pocket on the inside of the front driver's side door in response to PO Lombardo's request for his driver's license. PO Lombardo found § 87(2)(b) [REDACTED]'s motion "furtive" because, from where he was standing, he could not see into the door pocket to see what § 87(2)(b) [REDACTED] was removing. PO Lombardo indicated that he believed that PO Donnelly also saw § 87(2)(b) [REDACTED]'s furtive motion towards the door and therefore searched it. § 87(2)(g) [REDACTED]

In *People v. Chann*, 221 A.D.2d 155 (1995 – 1st Dept.) (Encl. 1A), the court ruled that, during a vehicle stop, a driver's motion to place an object in the backseat did not suggest that he was armed and did not provide sufficient basis to search the vehicle. Further, the court held that, in any event, once the officers removed the driver from the vehicle, he posed no further threat to their immediate safety.

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that Allegation A be **Substantiated**.

Allegation B – Abuse of Authority – At Jerome Avenue and Clinton Place in the Bronx, Sgt. Albert Rodriguez supervised the frisk of § 87(2)(b) [REDACTED]

It is undisputed that PO Lombardo frisked § 87(2)(b) [REDACTED] while § 87(2)(b) [REDACTED] verbally protested PO Donnelly searching his vehicle. PO Lombardo further testified that § 87(2)(b) [REDACTED] walked towards PO Donnelly and shouted at him in protest. PO Lombardo described § 87(2)(b) [REDACTED]'s action as "violent," citing the loudness of § 87(2)(b) [REDACTED]'s voice and the speed of his walk. PO Lombardo stated that this action by § 87(2)(b) [REDACTED] in addition to his earlier reach into the door pocket, led him to fear that § 87(2)(b) [REDACTED] might have been in possession of a weapon.

It is permissible for an officer to frisk an individual only if the officer has reasonable suspicion that an individual is armed and potentially dangerous. People v. Gonzalez, 743 N.Y.S.2d 112 (2002 – 1st Dept.) (Encl. 1F-G). The courts have taken into account the totality of circumstances when determining the propriety of a frisk, including factors such as bulges, reaches into clothing, and a person’s admittance that they were in possession of contraband. People v. Hensen, 21 A.D.3d 172 (2005 – 1st Dept.) (Encl. 1B-D).

§ 87(2)(g)

It is therefore recommended that **Allegation B** be **Substantiated**.

Allegation C – Abuse of Authority – At the 46th Precinct stationhouse, PO Eugene Donnelly strip searched § 87(2)(b)

Although PO Lombardo stated that he transported § 87(2)(b) to the stationhouse and frisked him there, he denied having conducted a strip search of § 87(2)(b). PO Donnelly and Sgt. Armstrong had no recollections of this incident. There is no notation in the command log, memo books, or summonses indicating that a strip search occurred. § 87(2)(g)

It is therefore recommended that **Allegation C** be **Unsubstantiated**.

Allegation D – Abuse of Authority – At the 46th Precinct stationhouse, PO Matthew Lombardo issued a summons to § 87(2)(b)

PO Lombardo arrested § 87(2)(b) transported him to the stationhouse, and released him with a summons for disorderly conduct. PO Lombardo cited § 87(2)(b) walking towards PO Donnelly after PO Lombardo had told him to remain at the back of the car and in having drawn the attention of passersby by loudly telling the officers that they were not allowed to search his car as his reasons for arresting him and subsequently issuing him a summons. PO Lombardo stated that the passersby would stop for “a second” and continue on their way. A crowd did not form and none of the passersby verbally interjected or physically interfered with the car stop. On the basis of these actions, PO Lombardo arrested § 87(2)(b) and subsequently issued a summons for disorderly conduct to him.

Penal Law section 240.20 subsection 6 (Encl. 1E) reads “A person is guilty of disorderly conduct when, with intent to cause public inconvenience, annoyance or alarm, or recklessly creating a risk thereof...He congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse.”

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation D** be **Substantiated**.

Team: 5

Investigator: _____ :
Signature Alexander Opoku-Agyemang May 9, 2012
Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date